

Tentative Rulings for Department 501

Begin at the next page

(34)

Tentative Ruling

Re: **Bankers Healthcare Group, LLC v. Candler**
Superior Court Case No. 25CECG03985

Hearing Date: August 6, 2026 (Dept. 501)

Motion: by Plaintiff for an Order Compelling Responses of Defendant Leroy Candler Jr. to Request for Production of Documents, Set One; for an Order Deeming Requests for Admissions, Set One, admitted by Defendant Leroy Candler Jr.

Tentative Ruling:

To deny, without prejudice, Plaintiff's motion for an order compelling responses to discovery. To deny, without prejudice, Plaintiff's motion for an order deeming requests for admission admitted by Defendant Leroy Candler Jr.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Explanation:

A party that fails to serve a timely response to a discovery request waives "any objection" to the request. (Code Civ. Proc., §§ 2031.300(a), 2033.280(a).) The propounding party may move for an order compelling a party to respond to the discovery request. (Code Civ. Proc., § 2031.300(b).) In the case of requests for admission, the propounding party may move for an order that the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280(b).)

Here, plaintiff seeks an order compelling responses without objections to request for production. Plaintiffs also request an order deeming the request for admissions admitted by defendant. The declaration of Joshua P. Friedman filed with each motion attests to the discovery having been served on December 12, 2025 and attaches the discovery requests as Exhibit A to each motion. (Friedman Decl., ¶ 2, Exh. A.) The exhibits do not include the proof of service evincing service upon defendant on December 10, 2025. As of April 29, 2026 no responses had been received and the instant motions were filed. (*Id.* at ¶ 4.)

All that needs to be established to support an order compelling initial responses to discovery is to show that the discovery was properly served, and that no responses were received by the due date. The same is true for plaintiff's motion to deem requests for admission admitted. While this is not an express requirement, attaching copies of the discovery served including the proof of service is the standard manner of proving service on a motion to compel. Here, copies of the discovery requests have been attached to counsel's declaration without the proofs of service. Counsel's declaration stating the date of service does not include the information required by statute to prove service. (See Code Civ. Proc., § 1013b.) Accordingly, the court cannot grant the motions.

Issued By: KCK **on** 08/03/26.
(Judge's initials) (Date)